

In the matter of an application for mandates in the matter of *Writ of Mandamus and Certiorari* under and in terms of Article 140 of the Constitution of the Democratic Socialist Republic of Sri Lanka.

The Sailor Colombo Logistics (Pvt) Ltd,
No. 30/2/B Dutugemunu Street
Kalubowila, Dehiwela.

Vs.

1. S.P. Arukgoda,
Director General of Customs,
Customs House,
No. 40 Main Street,
Colombo 11.
2. Hon. Attorney General,
Attorney General's Department
Colombo 12.

Respondents

Counsel : M.R.M. Fazeen
Instructed by Nadeeka Seneviratne
for the Petitioner.

Avanthi Weerakoon, SC
for all the Respondents

Argued on : 14-05-2026
Decided on : 09-07-2026

JUDGMENT

R. Gurusinghe, J.

The petitioner's main grievance, as stated in the petition, relates to the classification of the Shalwar Kameez set. The petitioner's contention is that the Salwar Kameez set constitutes a single article for the purpose of customs classification and ought to be assigned as a single Harmonised System Code (HS Code).

The position of the 1st respondent in this regard is that Shalwar Kameez cannot be classified as a single set and must be classified separately under their respective HS Codes for the three constituent components that makeup the Salwar Kameez.

The petitioner states that *"Shalwar suits are commonly worn across South Asia widely accepted in global markets. These garments are manufactured and internationally recognized as coordinated outfits comprising Kameez (Upper Garment or Top) Shalwar (Lower Garment) and Duppata (Scarf or Shawl). It is designed to purchase and worn directly."*

The petitioner further states that the three components are designed to be worn together as a single outfit. It is averred that the items are packed and sold as a single retail unit, labelled under a single stock-keeping unit, and presented as a single line item on the invoice, tagged and priced as a one complete garment.

The petitioner further states that several exchanges of correspondence ensued with the Director General of Customs and the Director General of the Department of Commerce concerning the proper classification of the Shalwar Kameez set. The position of the Director General, Department of Commerce, is reflected in the letter dated 06-08-2025 marked P14. In the said document, *inter alia*, the following has been observed.

“As the request concerns the classification of shalwar-kameez garments under the ISFTA – highlighting a disparity between the HS code applied by the Indian exporter and those used by Sri Lanka – this Department referred the matter to Sri Lanka Customs for the clarification. (Annex 2).

Based on the response received, it was noted that the World Customs Organization (WCO), at its 52nd Session held in September 2013 in Brussels, issued an official classification ruling on garments of the shalwar-kameez type – comprising the tunic (kameez), trousers (shalwar), and shawl (dupatta). According to the ruling, such garments are to be classified under separate HS headings as individual items, rather than as a single ensemble unit (Annex 3).

Sri Lanka Customs has further clarified that the creation of a national-level sub-division to classify all components of the shalwar-kameez set under a single HS code would be in contravention of the WCO directive and is therefore not permissible.”

The petitioner, by letter dated 13-08-2025, marked P15, addressed to the Chairman, Nomenclature Classification Committee, Sri Lanka Customs, and setting out the relevant facts, requested that appropriate measures be taken to adopt a dedicated national sub-division for the classification of the Shalwar Kameez as a single, inseparable garment set.

In response to P15, the Senior Deputy Director of Customs, in his capacity as Secretary to the Nomenclature Classification Committee, addressed the petitioner by letter dated 09-09-2025, marked P16. In the said letter, *inter alia*, states as follows:

“The matter was presented to the Nomenclature and Classification Committee. After careful consideration, the Committee observed that the classification of garments must follow the provisions of the Harmonized Commodity Description and Coding System (HS), published by the World Customs Organization (WCO).

In particular, attention is drawn to the **legal Note 14 of Section XI** of the HS, which provides as follows:

*“Unless the context otherwise requires, textile garments of different headings are to be classified in their own headings **even if put up in sets for retail sale**. For the purposes of this Note, the expression*

‘textile garments’ means garments of headings 61.01 to 61.14 and headings 62.01 to 62.11.”

Further, the Committee noted that the **Harmonized System Committee (HSC) of the WCO** has already issued **Classification Rulings NC1871R1b and NC1898E1a**, confirming that garments of the “*Salwar-Kameez*” type are to be classified under separate HS headings as distinct articles, and not as a single unit.

In addition, the Committee wishes to draw attention to Gazette Extraordinary No 2323/49 dated 24.03.2023 (Revenue Protection Order No. 07/2022), which incorporates these provisions into the national tariff schedule.”

In light of the above, the Committee concluded that *Salwar* and *Kameez* cannot be classified together as one article. Each garment must be classified separately under its respective HS heading.

This position has been adopted to ensure consistency with the Harmonized System provisions, the international classification standards of the WCO, and the national legal framework.”

The petitioner seeks to challenge the respondents' classification of the Shalwar Kameez, adopted pursuant to the classification determination made in 2013. The respondents submitted that the World Customs Organisation (WCO) classification of Shalwar Kameez has been made with due consideration and the application of specialised technical expertise and knowledge.

The petitioner sought to classify the Shalwar Kameez suit under HS Chapter 62, heading 6211.42.10. According to Chapter 62, HS Code 6211 applies to tracksuits, ski suits, swimwear, and other garments and does not encompass shalwar. The respondents further state that separate and specific HS Codes have been prescribed for the classification of Shalwar.

Even in India, the Kurti/Kameez (Top) is classified under 6206, the Shalwar/Bottom under 6204, and the Dupatta (Scarf/Shawl) under 6214.

Each of Kameez (Top), Shalwar (Bottom or Pant), and Dupatta (Scarf/Shawl) is capable of being sold separately in the open market, whether as part of a mix-and-match retail offering or as a standalone garment. Each garment has an independent function, and none of which is dependent on the presence of the other one or two items for its ordinary use. There is no fixed or invariable matching of fabric colour or design across three pieces.

Sri Lanka has been a member state of WCO since 1967. The present classification applicable to the Shalwar Kameez was implemented by the WCO in 2013. Member countries of the WCO have general obligations to adopt international standards for cross-border trade, harmonise customs procedures, classify goods accurately, and cooperate in combating illicit trade. These standards foster economic competitiveness and secure fair revenue collection. Members are obligated to use the Harmonised System (HS), an international standardised system of names and numbers for classifying traded goods for tariff and trade data.

This approach is supported by persuasive Indian authority. In Collector of Central Excise, Shillong vs Wood Craft Products Ltd, on 20-03-1995ⁱ, the Supreme Court of India observed at paragraph 12 that the Central Excise Tariff, being founded upon the Harmonised System of Nomenclature (HSN), must, as far as practicable, be interpreted consistently with the internationally accepted nomenclature.

“12. It is significant, as expressly stated, in the Statement of Objects and Reasons, that the central excise tariffs are based on the HSN and the internationally accepted nomenclature was taken into account to "reduce disputes on account of tariff classification". Accordingly, for resolving any dispute relating to tariff classification, a safe guide is the internationally accepted nomenclature emerging from the HSN. This being the expressly acknowledged basis of the structure of central excise tariff in the Act and the tariff classification made therein, in case of any doubt the HSN is a safe guide for ascertaining the true meaning of any expression used in the Act. The ISI Glossary of Terms has a different purpose and, therefore,, the specific purpose of tariff classification for which the internationally accepted nomenclature in HSN has been adopted, for enacting the Central Excise Tariff Act, 1985, must be preferred, in case of any difference between the meaning of the expression given in the HSN and the meaning of that term given in the Glossary of Terms of the ISI.”

As a member state, the respondents have adopted and implemented the official classification prescribed by the WCO. We see no compelling reasons to deviate from or to depart from the established WCO classifications applicable to the Shalwar Kameez.

In the foregoing circumstances, we are of the view that the respondents have neither acted unlawfully nor unreasonably. Accordingly, we find no basis to interfere with the impugned decision, and we dismiss the petitioner's application.

Judge of the Court of Appeal

Dr. S. Premachandra J.

I agree.

Judge of the Court of Appeal.

<https://indiankanoon.org/doc/1908737/accsesed> on 08/07/2026